

HOUSE No. 299

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve management of business improvement districts.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/17/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/3/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/5/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/5/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/10/2025</i>

HOUSE No. 299

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 299) of Antonio F. D. Cabral and others for legislation to further regulate business improvement districts. Community Development and Small Businesses.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve management of business improvement districts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4, paragraph 6, of Chapter 40O of the General Laws shall be
2 amended as follows:

3 Participation in the BID shall be permanent until after the discontinuation of the BID as
4 provided in this section, or until the dissolution of the BID under section 10. A non-participating
5 owner in the district shall become a participating member on the date of a renewal vote, as
6 provided below. On or before the fifth anniversary of the organization of a newly created BID,
7 the board of directors of the BID or of its designated management entity shall call a renewal
8 meeting of the BID members to review the preceding 5-year history of the BID, to propose an
9 updated improvement plan to succeed the then current improvement plan and to consider
10 whether to continue the BID. The renewal meeting shall be held at a location within the district.
11 Notice of the meeting shall be given to participating members in the manner provided in the by-
12 laws, at least 30 days prior to the meeting. The BID shall continue if a majority of participating

property owners who are not more than 30 days in arrears in any payment due to the BID and are present at the renewal meeting, in person or by proxy, vote to renew the BID commencing on the first day of the next fiscal year of the BID. Thereafter, the board of directors of the BID may opt for a renewal term of up to 10 years and shall follow all procedures for a renewal meeting heretofore described.

SECTION 2. Section 8, paragraph 5, of Chapter 40O of the General Laws shall be struck and amended as follows:

The BID corporation shall comply with the public charity reporting requirements of section 8F of chapter 12. A copy shall be made available for the public to access in the town or city offices or on the municipal website.